

Lead Graham, Michael vs. CA Farms, LLC

County: tulare

Division: Civil Law and Motion

Department: 1-Honorable David C. Mathias

Hearing date: 2026-09-24

Motion: Motion to Quash Records Subpoenas

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Re: Graham, Michael vs. CA Farms, LLC

Case No.: Lead: VCU3245716; consolidated with PCU325122

Date: September 24, 2026

Time: 8:30 A.M.

Dept. 1-Honorable David C. Mathias

Motion: Motion to Quash Records Subpoenas

Tentative Ruling: The motion is granted as to the Fidelity National Title Insurance Company and Fresno Escrow Inc. subpoenas and otherwise denied. Sanctions in the amount of \$4,380 are awarded against moving parties and their counsel pursuant to Code of Civil Procedure section 1987.2.

This is a motion to quash deposition subpoenas for production of business records under Code of Civil Procedure section 1987.1.

Moving parties are Ron Cook; Jennifer Cook; Corporate America Lending, Inc. (CAL); and CA Farms, LLC (CA Farms). Moving parties move to quash 15 deposition subpoenas served by Michael and Cynthia Graham for the production of records from the following non-parties: (1) Chicago Title Company; (2) Chicago Title Insurance Company; (3) Fidelity National Title Company of California; (4) Fidelity National Title Insurance Company; (5) Fidelity National Title; (6) Financial Title Company; (7) First American Title Company; (8) First American Title Guaranty Company; (9) Fresno Escrow Inc.; (10) Lawyers Title Company; (11) Lennar Title Inc., formerly known as North American Title; (12) Old Republic Title Company; (13) Placer Title Company; (14) Stewart Title of California; and (15) Trans-County Title Co.

As a preliminary matter, moving parties object to the Grahams' subpoenas directed to Fidelity National Title Insurance Company and Fresno Escrow Inc. on the ground that they fail to request any documents. This is true. The Grahams acknowledge they inadvertently failed to include attachments to their subpoenas describing the records they sought and indicate the subpoenas "can be withdrawn and reissued" with the missing attachments. Accordingly, it is not in dispute that the motion to quash should be granted as to these subpoenas, and, therefore, it is. It is unfortunate that this issue was not, as it evidently could have been, addressed without the need for law and motion.

In any event, the remaining subpoenas include an identical description of documents that the Grahams direct to several deponents to produce. The Grahams demand from each deponent “all documents in [the deponent’s] possession, custody, or control relating to any real estate transaction, escrow, or title work involving” several described parcels of real property (over 20), “AND which involved any of” Michael and/or Cynthia Graham, Ronald Cook, Jennifer Cook, CAL, CA Farms, and/or Prosperity Farms, LLC (Prosperity Farms). (Emphasis in original.)

ANALYSIS

Standards

“In the absence of contrary court order, a civil litigant’s right to discovery is broad. ‘[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.’ (Code Civ. Proc., § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 [204 Cal. Rptr. 154, 682 P.2d 349] [‘discovery is not limited to admissible evidence’].) ... Section 2017.010 and other statutes governing discovery ‘must be construed liberally in favor of disclosure unless the request is clearly improper by virtue of well-established causes for denial.’ (*Greyhound Corp. v. Superior Court*, supra, 56 Cal.2d at p. 377.) This means that ‘disclosure is a matter of right unless statutory or public policy considerations clearly prohibit it.’ (Id. at p. 378.)” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 [220 Cal.Rptr.3d 472, 398 P.3d 69].)

Code of Civil Procedure section 1987.1 permits “the court, upon motion reasonably made by” “[a] party” (amongst others), to “make an order quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Id., subd. (a).) “In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Ibid.)

Discussion

Moving parties scatter a litany of different objections to the Grahams’ serially deployed identical description of documents, without differentiation between the several deponents from whom documents are sought. None persuade this court that any of the targeted subpoenas should be quashed because the objections are transparently meritless.

Moving parties first object that the “request[s]” have “no limit as to time.” They contend that, because of this, the requests are overbroad, and because they are overbroad, that they do “not seek admissible evidence” and are “not reasonably calculated to lead to admissible evidence.” It does not follow, of course, that all records sought by a subpoena are not admissible evidence or reasonably calculated to lead to admissible evidence merely because the request for them was overbroad, but that does not particularly matter here.

More fundamentally, moving parties entirely fail to explain why the lack of a “limit as to time” renders the several “request[s]” challenged overbroad. Instead, they merely state “[t]he request[s] [have] no limit as to time,” and “[a]re therefore”—by virtue of that alone—“overbroad as to time.”

The requests are not obviously overbroad merely incident to lacking a “limit as to time.” Without more, moving parties’ contention is without merit. As the Grahams point out, the records demanded are limited to “documents ... relating to any real estate transaction, escrow, or title work involving” both specifically described parcels of real property” and specifically listed persons who are parties to this case.

Moving parties next contend the requests are “overbroad, and irrelevant, in that [they] seek[] information regarding real properties for which no reference can be found in the pleadings of either Case No.: VCU324716 or Case No.: PCU325122.” The objection is also not persuasive.

As the Grahams' point out, there is no strict requirement that discovery can only be sought for "information regarding real properties for which ... reference can be found in the pleadings." Counsel for the Grahams avers, moreover, that each of the parcels listed in the serially used description of documents demanded was found, in the course of their investigative efforts, to have appeared "in one or more recorded instruments or in documents produced in these consolidated actions in connection with a transaction in which Ron Cook, Corporate America Lending, Inc., or CA Farms, LLC solicited, obtained, or applied funds advanced by the Grahams." Presumably, moving parties could have easily identified specific reasons why one or more of the parcels listed by the Grahams are irrelevant to the claims in this case, and the court can only assume they did not because they cannot.

Moving parties additionally submit a perfunctory privacy objection. First, they paraphrase various statements of law concerning the right of privacy in personal records; then they conclude with single, flat assertion: "Here, the Cook Parties have a right of privacy to the financial information they disclosed to the escrow agents, title insurance companies, and/or title companies."

Perhaps they do. Clearly proclaimed in cases the moving parties cite: "A constitutional amendment adopted in 1974 elevated the right of privacy to an 'inalienable right' expressly protected by force of constitutional mandate [citing Cal. Const., art. I, § 1]," which "extends to one's confidential financial affairs as well as to the details of one's personal life" (Valley Bank of Nev. v. Superior Court (1975) 15 Cal.3d 652, 656 [125 Cal.Rptr. 553, 542 P.2d 977]), and "protects against the unwarranted, compelled disclosure of various private or sensitive information regarding one's personal life [citation], including his or her financial affairs [citation]" (Hooser v. Superior Court (2000) 84 Cal.App.4th 997, 1003-1004 [101 Cal.Rptr.2d 341]).

It is not enough, however, for moving parties simply to identify their constitutional right to privacy in personal/financial records and state that they "have" such right with respect to records of this type sought in discovery. Instead, "[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court, supra, 3 Cal.5th at p. 552.)

Moving parties fail to do so here. They do not even make any attempt. As the Grahams point out, moving parties only submit a declaration by their counsel establishing that the 15 subpoenas at issue were issued, and that copies of those subpoenas attached to the declaration are "true and correct cop[ies]."

This objection, then, is also without merit.

Beyond this, moving parties assert objections in which they have no stake. They contend the subpoenas are unduly burdensome and oppressive, despite that they direct production of records by others; and they contend the privacy rights of third parties are implicated without reference to any interest in the protection of those rights. Of course, these objections are also meritless.

Moving parties present no meritorious argument in support of their motion. Except with respect to the subpoenas directed to Fidelity National Title Insurance Company and Fresno Escrow Inc., their motion is denied.

The Grahams, in their opposition, request sanctions under Code of Civil Procedure section 1987.2. Subdivision (a) of that section provides, in relevant part: "[I]n making an order pursuant to motion made under ... Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in ... opposing the motion, including reasonable attorney's fees, if the court finds the motion was made ... in bad faith or without substantial justification"

The court finds the motion to quash was made in bad faith and without substantial justification.

It is not merely that moving parties present objections without merit, it is that they present them—several, in fact—without any attempt even to support them. It is, accordingly, easy to conclude that the instant motion was made "without substantial

justification.” The motion’s focus was transparently only to identify grounds that would trigger responsive efforts, without any effort to show merit to the grounds asserted. The only discernable motivation for such approach is bad faith; to force the Grahams to respond to as many legal issues as possible with as little affirmative effort to put them at issue as possible. The court recognizes the motion to quash was successful with respect to two of the 15 subpoenas challenged, but this does not establish substantial justification or good faith. It might, if the motion were so limited to those two subpoenas, but it was not.

The court further finds the Grahams request for \$4,380 in reasonable attorney’s fees, representing 12 hours of attorney time, multiplied by a reasonable hourly rate of \$365 per hour, is appropriate. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [95 Cal. Rptr. 2d 198, 997 P.2d 511].) The court finds 12 hours is a reasonable amount of time with respect to the Grahams’ opposition, which included an opposition brief, and declarations in support both by the Grahams’ counsel and Michael Graham. The court additionally finds \$365 is within the range of reasonable rates in the area for attorneys of commensurate ability as attorney Jendian, particularly given the complicated nature of this litigation.

Finally, the court agrees that it is appropriate to order these sanctions payable jointly and severally by the moving parties and their counsel. The court agrees with the Grahams that moving parties’ motion presents as part of a troubling theme of demands by at least some of these moving parties “for sweeping relief” that are “unsupported by evidence or law.” What’s more, while the decision to advance meritless arguments in a motion to quash may, in many cases, be properly attributed to a client, particularly, for example, where facts supplied by a client as a basis for relief prove to be insufficient or otherwise inadequate, the decision to advance meritless arguments without any factual support or justification cannot be attributed to the client alone. An attorney is responsible for knowing, and, indeed, certifies when submitting a pleading, that it is not being presented for an improper purpose; that legal contentions submitted in a motion must be warranted by the law or a nonfrivolous extension, modification or reversal of it; and that factual contentions asserted have evidentiary support. (See Code Civ. Proc., § 128.7.)

Accordingly, the court orders the \$4,380 in sanctions awarded payable jointly by the moving parties and their counsel.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.